39. Right against the adverse effects of climate change

The important cases relating to the expansion of the scope of Article 21 (Protection of Life and Personal Liberty) are mentioned in Table 8.6.

4. Right to Education

Article 21A declares that the State shall provide free and compulsory education to all children of the age of six to fourteen years in such a manner as the State may determine. Thus, this provision makes only elementary education a Fundamental Right and not higher or professional education.

This provision was added by the 86th Constitutional Amendment Act of 2002. This amendment is a major milestone in the country's aim to achieve 'Education for All'. The government described this step as 'the dawn of the second revolution in the chapter of citizens' rights'.

Even before this amendment, the Constitution contained a provision for free and compulsory education for children under Article 45 in Part IV. However, being a directive principle, it was not enforceable by the courts. Now, there is scope for judicial intervention in this regard.

This amendment changed the subject matter of Article 45 in directive principles. It now reads—'The state shall endeavour to provide early childhood care and education for all children until they complete the age of six years.' It also added a new fundamental duty under Article 51A that reads—'It shall be the duty of every citizen of India to provide opportunities for education to his child or ward between the age of six and fourteen years'.

In *Unni Krishnan* case[12a] (1993) itself, the Supreme Court recognised a Fundamental Right to primary education in the right to life under Article 21. It held that every child has a right to free education until he/she completes the age of 14 years. Thereafter, his/her right to education is subject to the limits of economic capacity and development of the state. In this judgement, the Court overruled its earlier judgement delivered in *Mohini Jain* case[12b] (1992) wherein it partly declared that there was a fundamental right to education up to any level including professional education like medicine and engineering.

Table 8.6 Important cases expanding the scope of Article 21 (Protection of life and personal liberty)

Sl. No.	Case (Year)	Right declared by the Supreme Court as an integral part of Article 21
1.	Satwant Singh Sawhney vs. Dr. Ramaratnam, Assistant Passport Officer (1967)	Right to travel abroad
2.	M.H. Hoskot vs. State of Maharashtra (1978)	Right to free legal aid
3.	Hussainara Khatoon vs. Home Secretary, Bihar (1979)	Right to speedy trial